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File No.: EXP202301875

## RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

### FACTS

FIRST: On February 1, 2023, a complaint was filed with registration number REGAGE23e00006419029 before the Spanish Agency for Data Protection against the COMMUNITY OF OWNERS R.R.R. with NIF \*\*\*NIF.1 (hereinafter, the complained party).

In this complaint, the present authority is informed of the installation of various surveillance cameras in the streets belonging to the community of owners. They claim that this installation was not approved by an agreement of the Owners' Meeting, but was a decision made by the legal representatives of the community.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

Along with this letter, various photographs were submitted showing the installation of several cameras in the residential area of the development.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on February 15, 2023, as evidenced by the acknowledgment of receipt in the file.

On February 15, 2023, a response was received from the complained party through the submission of a responsible declaration model in which they declare that the cameras subject to the complaints are fictitious, not allowing the viewing of recorded images, and committing not to make future use of them that would allow the processing of personal data.

THIRD: On May 1, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

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### LEGAL GROUNDS

I

#### Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Article 22 of the LOPDGDD, relating to processing for surveillance purposes, establishes the following:

1.

Natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of persons and property, as well as

their facilities.

2. Images of public roads may only be captured to the extent that it is essential for the purpose mentioned in the previous section.

However, it will be possible to capture images of public roads to a greater extent when necessary to ensure the safety of strategic property or facilities or infrastructures linked to transportation, without in any case allowing the capture of images from inside a private home.

3. The data shall be deleted within a maximum period of one month from their capture, unless they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities. In such cases, the images must be made available to the competent authority within a maximum period of seventy-two hours from the time the existence of the recording is known.

The obligation to block provided for in Article 32 of this organic law shall not apply to these treatments.

4. The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informative device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the responsible party, and the possibility of exercising the rights provided for in the

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Articles 15 to 22 of Regulation (EU) 2016/679. It may also include a connection code or internet address to this information.

In any case, the data controller must keep the information referred to in the aforementioned regulation available to the affected parties.

5. Under Article 2.2.c) of Regulation (EU) 2016/679, the processing of images captured solely within the interior of one's own home by a natural person is considered excluded from its scope of application.

This exclusion does not cover processing carried out by a private security entity that has been contracted for the surveillance of a home and has access to the images.

6. The processing of personal data derived from images and sounds obtained through the use of cameras and video cameras by the Security Forces and Bodies and by the competent authorities for monitoring and control in penitentiary centers and for the control, regulation, monitoring, and discipline of traffic shall be governed by the legislation transposing Directive (EU) 2016/680, when the processing is for the purposes of preventing, investigating, detecting, or prosecuting criminal offenses or executing criminal sanctions, including protection and prevention against threats to public safety. Outside of these cases, such processing shall be governed by its specific legislation and, subsidiarily, by Regulation (EU) 2016/679 and this organic law.

7. The provisions of this article are understood without prejudice to what is established in Law 5/2014, of April 4, on Private Security and its implementing provisions.

8. The processing by the employer of data obtained through camera or video camera systems is subject to the provisions of Article 89 of this organic law.

In this case, considering the content of the responsible declaration submitted by the responding party, which states that such cameras are fictitious, it is presumed that there is no processing of personal data by these cameras and, therefore, the previously mentioned provisions do not apply.

However, it must be taken into account that, according to the provisions of Article 69 of Law 39/2015 of October 1, the Administrations may require at any time that documentation proving compliance with the aforementioned requirements be provided, and the interested party must provide it.

Therefore, the responding party is informed that any indication brought to the attention of this authority that the installed cameras are not fictitious may lead to the initiation of a new sanctioning procedure that may conclude, if proven, with the imposition of the corresponding administrative sanction.

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According to Article 6.1 of the GDPR, "Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) the processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) the processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child."

#### Conclusion

Therefore, based on the information provided in the previous paragraphs, no evidence has been found to establish the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

All of this is without prejudice to any subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

For the reasons stated, as it has not been possible to attribute responsibility for the processing of data through video surveillance cameras given that it has been asserted through the responsible declaration that they are fictitious, without prejudice to any possible subsequent actions by this authority, in accordance with what has been indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to the COMMUNITY OF OWNERS R.R.R. and to the complaining party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may

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to file, optionally, a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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